

# HOUSE . . . . . No. 4661

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**The Commonwealth of Massachusetts**

PRESENTED BY:

***Manny Cruz and Joan B. Lovely***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the city of Salem to convert 1 seasonal license for the sale of all alcoholic beverages to be drunk on the premises to an annual license for the sale of all alcoholic beverages to be drunk on the premises and to convert 1 seasonal license for the sale of all alcoholic beverages to be drunk on the premises to an annual license for the sale of wine and malt beverages and cordials to be drunk on the premises.

PETITION OF:

| NAME:                 | DISTRICT/ADDRESS:   | DATE ADDED:       |
|-----------------------|---------------------|-------------------|
| <i>Manny Cruz</i>     | <i>7th Essex</i>    | <i>10/22/2025</i> |
| <i>Joan B. Lovely</i> | <i>Second Essex</i> | <i>10/23/2025</i> |

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By Representative Cruz of Salem and Senator Lovely, a joint petition (accompanied by bill, House, No. 4661) of Manny Cruz and Joan B. Lovely (with the approval of the mayor and city council) relative to alcoholic beverage licenses in the city of Salem. Consumer Protection and Professional Licensure. [Local Approval Received.]

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act authorizing the city of Salem to convert 1 seasonal license for the sale of all alcoholic beverages to be drunk on the premises to an annual license for the sale of all alcoholic beverages to be drunk on the premises and to convert 1 seasonal license for the sale of all alcoholic beverages to be drunk on the premises to an annual license for the sale of wine and malt beverages and cordials to be drunk on the premises.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. (a) Notwithstanding sections 17 and 17A of chapter 138 of the General  
2       Laws, the licensing authority of the city of Salem may convert 1 seasonal license for the sale of  
3       all alcoholic beverages to be drunk on the premises to an annual license for the sale of wine and  
4       malt beverages and cordials to be drunk on the premises under section 12 of chapter 138  
5       currently issued to Amazing Pizza LLC d/b/a Amazing Pizza located at 62 Wharf Street in the  
6       city of Salem. The license converted under this section shall be subject to all of said chapter 138  
7       except sections 17 and 17A.

8           (b) Notwithstanding sections 17 and 17A of chapter 138 of the General Laws, the  
9       licensing authority of the city of Salem may convert 1 seasonal license for the sale of all

alcoholic beverages to be drunk on the premises to an annual license for the sale of all alcoholic beverages to be drunk on the premises under section 12 of chapter 138 currently issued to Maitland Farm LLC d/b/a Maitland Farm Kitchen and Spirits located at 84 Derby Street in the city of Salem. The license converted under this section shall be subject to all of said chapter 138 except sections 17 and 17A.

The licensing authority shall not approve the transfer of the license converted pursuant to this section to any other location but it may grant the license to a new applicant at the same location if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good

standing with those departments and that all applicable taxes, fees and contributions have been paid.

If the license converted pursuant to this section is cancelled, revoked or no longer in use at the location of original issuance, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may then grant the license to a new applicant at the same location under the same conditions as specified in this act.

SECTION 2. (a) The city of Salem shall charge a fee for the conversion of the licenses authorized in section 1 which shall be paid by the licensee at the time of issuance unless the licensing authority agrees to enter into a contract with the licensees to allow the division of the fee into multiple payments over time from the licensee. If the city elects to accept multiple

31 payments over time from the licensees, the option shall be made available, upon request, to all  
32 qualified applicants for a license.

33 (b) Any fee collected by the city of Salem for the licenses converted pursuant to section 1  
34 which is greater than the amount of the fee charged for an annual renewal of a similar license  
35 issued by the city shall be deposited into the city's economic development account and expended  
36 by it in a manner consistent with the purposes of such account.

37 SECTION 3. This act shall take effect upon its passage.